

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ERICA PLAM,

Petitioner

VS.

ERIC HUDSON PLAM,

Respondent

) Case Number: FDI-22-796258

) Hearing Date: May 19, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JUDGE KATHLEEN DIESMAN

REQUEST FOR ORDER : TEMPORARY EMERGENCY ORDER, ORDER SHORTENING TIME;
SEE #7 OTHER ORDERS REQUESTED; REQUEST FOR ORDER: DISTRIBUTION OF IOLTA
FUNDS; SANCTIONS PURSUANT TO FC SS 271 & 110; OTHER ORDERS AND SEE #7

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Erica Plam (Mother) and Respondent Eric Hudson Plam (Father).
- 2) On 9/5/25, the Court ordered the immediate reappraisal and sale of the San Francisco property located at 1850 10th Avenue in San Francisco, California (against Mother's request to delay the sale of the home for 10 months), with additional orders regarding the sale process, expenses incurred to effectuate the sale, carrying costs, and sale proceeds. The Court reserved jurisdiction over the sale of the home. See Findings and Order After Hearing (FOAH) filed 9/5/25.
- 3) On 10/7/25, the Court issued a Final Statement of Decision, which includes disposition of the San Francisco property and the Reno property (located at 712 S. Arlington Avenue Reno, Nevada) and other orders related to property division. The Court ordered, in pertinent part:
 - a. Regarding the San Francisco property, the Court ordered that the net sale proceeds of the home be divided equally between the parties minus Family Code section 2640

reimbursements. The Court also stated that expenses related to the sale of the home will be divided equally between the parties. See page 6-7.

- b. “*Epstein credits*” are to be paid from the community. (*In re Marriage of Jefferies* (1991) 228Cal.App.3d 548.) See page 8.
 - c. The Court exercised its discretionary authority and awarded \$25,000 of *Epstein credits* to Father for “reimbursement of separate property mortgage payments, property tax payments, and home insurance for the San Francisco home post separation during the time that [Mother] had exclusive use of the residence.” The Court declined to award *Watts charges* to either party. See page 9.
 - d. Regarding the Jeep vehicle purchased in 2019, the Court declined to issue *Epstein credits* or *Watts charges*. The Court awarded proceeds of a lemon law settlement to Father and ordered Mother to repay Father \$25,201, which she received from the lemon law settlement. See page 10.
 - e. Regarding business taxes, the Court ordered Mother to pay Father \$6,000 for payment of business taxes. See page 10.
- 4) At the prior 2/17/26 hearing on Father’s 1/7/26 Ex Parte Request for Order, the Court set a review hearing on 5/19/26 stating, “The Court reserves jurisdiction over the sale of the home including division of the sale proceeds consistent with the Court’s 9/5/25 order and further order of the Court.” See FOAH filed 3/3/26.
 - 5) At the prior 3/10/26 hearing, the Court disbursed a portion of the net sale proceeds of the San Francisco property to the parties as follows: (a) \$44,230.48 to Father off the top at closing and (b) \$50,000 to each party. See FOAH filed 4/2/26.
 - 6) On 4/14/26, Father filed a Request for Order seeking disbursement of funds from the net sale proceeds of the San Francisco property.
 - 7) At the prior 4/23/26 hearing, the Court ordered: (a) Father agreed to buy out Mother’s interest in the Reno property for \$170,000; (b) each party shall receive \$150,000 of the net sale proceeds of the San Francisco property; (c) Father’s \$150,000 distribution shall be held until Mother receives the buyout payment for the Reno property; and (d) the remaining approximately \$106,632 in funds from the net sale proceeds of the San Francisco property shall remain in counsel for

Mother's client trust account not be distributed without written agreement or further court order.
See 4/23/26 Minute Order.

8) On 5/6/26, Mother filed a Responsive Declaration in opposition to Father's 4/14/26 Request for Order.

9) On 5/12/26, Father filed a Reply Declaration reiterating his requests related to disbursement of funds from the net sale proceeds of the San Francisco property.

B. Findings and Order

1) It is undisputed that approximately \$106,632.64 of the net sale proceeds of the San Francisco property remains in counsel for Mother's client trust account (i.e., Mother acknowledges this amount in her 5/6/26 Responsive Declaration and Father acknowledges this amount in his 5/12/26 Reply Declaration), which the Court acknowledged and ordered not be distributed without written agreement or further court order. See 4/23/26 Minute Order.

2) Based on the pleadings, the Court finds the parties do not agree on how the remaining funds should be distributed; therefore, the Court finds good cause to rule of Father's requests (set forth in his 4/14/26 Request for Order) and distribute the remaining net sale proceeds of the San Francisco property in accordance with the Final Statement of Decision issued 10/7/25 as follows:

3) Father's request for \$25,000 in *Epstein* credits is GRANTED, the full balance of which shall be paid from the undivided funds. This leaves \$81,632.64 for equal distribution between the parties ($\$106,632.64 - \$25,000 = \$81,632.64$) or approximately \$40,816.32 awarded to each party, subject to the orders below.

4) Father's request for \$25,201 in Jeep settlement refund is GRANTED, the full balance of which shall be paid from Mother's share of the funds.

5) Father's request for \$6,000 in business taxes is GRANTED, the full balance of which shall be paid from Mother's share of the funds.

6) Father's request for \$22,115.24 for foreclosure cure reallocation is DENIED as Father was previously reimbursed \$44,230.48 from the San Francisco home sale proceeds for curing the mortgage default and preventing foreclosure. See FOAH filed 4/2/26.

7) Father's request for \$2,785.04 in reimbursement for unauthorized home repairs is DENIED as the Court ordered the cost of home repairs divided equally.

1 8) Father's request for \$440.40 in mortgage late fee charges and \$3,843.36 in mortgage delay
2 damages is DENIED.

3 9) Father's request for reimbursement of \$1,663.10 for a Bank of America Cashier Check issued in
4 his name only is GRANTED, the full balance of which shall be paid from Mother's share of the
5 funds.

6 10) Father's request for \$18,784.79 in attorney's fees sanctions and additional request for \$5,000 in
7 fiduciary-duty sanctions is DENIED.

8 11) Counsel for Mother shall distribute the funds in accordance with the orders made herein within 60
9 days of this hearing.

10 12) In so far as there remain issues related to the exchange of personal property; the parties shall
11 follow the process ordered at the prior 4/23/26 hearing. See 4/23/26 Minute Order.

12 13) Counsel for Mother shall prepare the Findings and Order After Hearing.

13 14) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
14 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
15 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
16 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
17 proposed order after hearing directly to the court. Failure to submit the order after hearing within
18 10 days may allow the other party to prepare a proposed order and submit it to the court in
19 accordance with CA Rules of Court, Rule 5.125(d).